

**SHIP TO:**

Brady Worldwide, Inc.  
Coated Products Div.  
2230 W. Florist Avenue  
GLENDALE WI 53209-3722

Brady Worldwide  
6555 W. Good Hope Road  
Milwaukee, WI 53223  
U.S.A.

**Purchase order****Vendor Address**

LOPAREX INC  
1255 CRESCENT GREEN, SUITE 400  
CARY NC 27518-8123

**SEND PRODUCT INVOICE TO:**

apmilwaukee@bradycorp.com OR  
P.O. Box 249  
Milwaukee, WI 53201-0249  
Attn: Accounts Payable

**Information**

|                       |                                 |
|-----------------------|---------------------------------|
| <b>PO Number</b>      | 4505930146                      |
| <b>Date</b>           | 02/11/2025                      |
| <b>Vendor No.</b>     | 201272                          |
| <b>Currency</b>       | USD                             |
| <b>Payment Terms</b>  | 1% 10, Net 45                   |
| <b>Buyer/Phone</b>    | Florist Prod Raw / 414-228-5783 |
| <b>Email</b>          | purch-flo@bradycorp.com         |
| <b>Confirmed with</b> | HEATHER HERZOG                  |
| <b>Delivery Date</b>  | 06/02/2025                      |
| <b>Incoterms</b>      | COL COLLECT                     |

Page 1 of 5

| Item | Material/Description                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         | Quantity | UM | Net Price | Net Amount |
|------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------|----|-----------|------------|
|      | <p><b>Confirmation of pricing, delivery and quantity is required as acceptance of this order.</b><br/><b>Please respond to Buyer contact on P.O.</b><br/><b>Email response is preferred.</b><br/>These Routing Instructions take precedence over any prior Route Guide that may exist.<br/>Brady Purchase Order, Sales Order, or Brady Employee Name must be listed in the Shipment Reference field or else shipment will get refused at receiving.</p> <p><b>Protect from Freezing or Temperature Control shipments</b> - Email <a href="mailto:Brady@chrobinson.com">Brady@chrobinson.com</a> for further instructions.<br/><b>Truckload/Flatbed/Large Volume/Expedite shipments</b> - (7+ pallets or more than 15,000 lbs) email <a href="mailto:logistics@bradycorp.com">logistics@bradycorp.com</a></p> <p><b>Suppliers - Domestic Shipments (US to US)</b><br/><b>*Small Parcel Shipments</b> - Less than 250 lbs and/or under 10 cartons - ship UPS parcel (account# 589973) COLLECT / DO NOT DECLARE VALUE</p> <p><b>*LTL</b> - (6 pallets or less &amp; 750 Cubic Ft) Please login to the RATELINX portal: <a href="https://my.ratelinx.com/">https://my.ratelinx.com/</a><br/>Client ID: BRADY CORPORATION<br/>User ID: bradyinbound<br/>Password: brady</p> <p>For LTL carrier identification: please enter shipment information in the <u>Shipping &gt; Rate Estimate</u> function.<br/>For complete LTL carrier routing, tendering and BOL creation: please enter shipment information in the <u>Shipping &gt; Ship By</u> function.</p> <p>Please ship 3rd Party and include the following billing information on BOL:<br/>Brady c/o Ratelinx<br/>PO Box 77065<br/>Madison, WI 53707</p> <p><b>US/Canadian Suppliers - Shipments between US &amp; Canada</b><br/>*Apply same routing rules mentioned above for domestic shipments*<br/>If LTL or Truckload, ensure PARS info is provided on Bill of Lading along with Port of Entry.</p> <p><b>International Suppliers - All Countries &amp; US Territories except for Canada and the US</b><br/><b>*Parcel</b> - Less than 45kgs ship UPS (account# 589973) COLLECT / DO NOT DECLARE VALUE<br/><b>*Over 45Kgs</b> - Email <a href="mailto:logistics@bradycorp.com">logistics@bradycorp.com</a> for Forwarder Instructions</p> |          |    |           |            |

Buyer specifically objects to the inclusion of any different or additional terms and conditions proposed by seller in acknowledging and accepting this order. The purchase order number shown must appear on all packing lists, bills of lading, invoices, packages, shipping labels, etc. If the material ordered hereon is covered by a Brady raw material specification, the material shipped must comply with the terms of that specification. Acknowledgment of this order must be in writing by return mail. Acknowledgment constitutes an acceptance of all terms and conditions stated, including those included with this document.

(Purchasing)

SIGNATURE \_\_\_\_\_

DATE \_\_\_\_\_

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Page 2 of 5

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|------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------|----|----------------------|------------|
|      | <b><u>For Custom Clearance routing instructions. Please email all necessary import documentation to the following brokers. Heat treated pallets are required:</u></b><br>US to Canada Broker - UPS SCS - UPSGenenteam@ups.com<br>All imports to US or Final Destination Mexico - Casas International - Casasimports@casasintl.com<br>For complete Brady Corporation's custom clearance routing guide or additional questions, please contact <a href="mailto:imports@bradycorp.com">imports@bradycorp.com</a> , <a href="mailto:bradysarl@bradycorp.com">bradysarl@bradycorp.com</a> , or <a href="mailto:exports@bradycorp.com">exports@bradycorp.com</a><br><br><b><u>Failure to adhere to the above routing instructions and shipping with another Carrier will result in the shipper taking on all associated shipping costs.</u></b><br><br>LTL Carrier:VISIT RATELINX WEB PORTAL FOR LTL C<br><br><b>WE REQUIRE AN ORDER ACKNOWLEDGMENT FOR THE FOLLOWING ITEMS:</b> |            |    |                      |            |
| 0010 | Y5024180<br>LNR,BR175,41",PPR,GLASSINE<br>Please see important ROHS statement below<br><b>Your material number: GRADE 31905 41"</b><br>*****<br>GRADE 31905 S 3.0 BL GLS 6000/000 R AT 41"<br>WIDTH<br>*****<br>BR-175<br>*****<br>SHIP FROM EDEN, NC.<br><br>CORE SIZE: 6"<br>MAXIMUM ROLL DIAMETER: 36"<br>COATED SIDE TO WOUND: OUT<br><br>COA REQUIRED. EMAIL TO<br>CPD_QA@BRADYCORP.COM.<br>TEST PER BR175 SPECIFICATIONS.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            | 21,951.000 | YD | 475.06<br>per /1,000 | 10,428.04  |

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Page 3 of 5

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|------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------|----|-----------|------------------------------|
|      | <p>ITEMIZED PACKING LIST INCLUDING<br/>SUPPLIER LOT INFORMATION TO BE FAXED<br/>TO RECEIVING: 414-228-5998</p> <p>IT IS REQUIRED THAT BRADY#S PART<br/>NUMBER AND PURCHASE ORDER NUMBER BE<br/>REFERENCED ON PACKING LIST, COA,<br/>INVOICE AND MATERIAL.</p> <p>ROLLS TO BE SHIPPED HORIZONTAL,<br/>WRAPPED FOR PROTECTION IN TRANSIT AND<br/>SECURED TO PALLETS</p> <p>Gross Price      475.06    USD /1,000 YD      10,428.04</p> <p>Total Order Value</p> <p><b>ROHS Requirement</b></p> <p>Vendor has certified to Purchaser product complies with ROHS Directive (2011/65/EU). By accepting this purchase order Vendor certifies that product whether new or reordered are ROHS Directive (2011/65/EU) compliant. Purchaser's order of such product is expressly conditioned upon and Purchaser has relied on such compliance certification. If product does not comply with ROHS Directive (2011/65/EU) this purchase order should be rejected and returned to Purchaser.</p> |          |    |           | <p>-----</p> <p>10428.04</p> |

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(Purchasing)

SIGNATURE \_\_\_\_\_ DATE \_\_\_\_\_

## BRADY WORLDWIDE PURCHASE ORDER TERMS AND CONDITIONS

1. **ACCEPTANCE.** This purchase order ("Order") shall be deemed accepted by Seller's commencement of performance, provision of services, shipment of products ("Services" and "Products"), whichever occurs first, and constitutes acceptance of this Order and its terms and conditions (the "Acceptance Date"). This Order constitutes the entire agreement between BRADY WORLDWIDE, Inc. ("Buyer") and Seller and it supersedes all prior or contemporaneous agreements and communications whether oral or written regarding its subject matter, including, without limitation, quotations, proposals, or bids and hereby objects to any terms proposed by Seller in Seller's quotation, acceptance or acknowledgment of Buyer's offer which add to, vary from, or conflict with these terms. Any such proposed terms shall not operate as a rejection of this offer but are deemed a material alteration, and this offer shall be deemed accepted by the Seller without said additional, different or conflicting terms. If this Order is deemed under applicable law to be an acceptance of a prior offer by Seller, such acceptance is limited to and expressly conditioned on Seller's assent to the terms contained within this Order.

2. **PRICE.** The price of the Products or Services shall be as indicated on the face of this Order (the "Price"). The Price is inclusive of all of Seller's costs (including labeling, packaging, taxes, duties, insurance and handling).

3. **INVOICING.** Unless otherwise instructed by Buyer in writing, Seller will invoice Buyer upon Buyer's receipt of the Products or completion of Seller's performance, whichever occurs later. Buyer objects to any terms or conditions referred to or attached to Seller's invoices. Such terms and conditions shall be of no force or effect, and Buyer's payment of the invoice shall be made only in accordance with the terms of this Order and shall not be deemed an acceptance of any such terms and conditions. Upon request from Buyer, Seller will invoice and accept payment in other currencies at prevailing currency exchange rates. Seller shall separately state on each applicable invoice (and not include them in the Price) any import duties or sales, use, value added, excise or similar tax. Payment is due net forty five (45) calendar days from the date of Buyer's receipt of Products, or from the date Buyer receives an invoice, whichever occurs latest. If there is a dispute that is not resolved within that period, payment will be due ten (10) calendar days after the dispute is resolved and a corrected invoice is received.

4. **CONFIDENTIAL AND PROPRIETARY INFORMATION.** Confidential Information ("CI") means confidential or proprietary data or information disclosed by Buyer to Seller in oral or written form. Seller will: (i) maintain the confidentiality of Buyer's CI and not disclose it to a third party; (ii) restrict disclosure of CI only to its employees and third party contractors who have a "need to know" in order to perform its obligations under this Order, and who are bound to maintain the confidentiality of the CI by terms of nondisclosure no less restrictive than those contained herein; (iii) handle CI with the highest degree of care; (iv) use CI only for the purpose of performing this Order; and (v) promptly notify Buyer upon discovery of any unauthorized use or disclosure of the CI and take all necessary steps to regain possession of the CI and prevent further unauthorized actions. Upon receipt of Buyer's written request, Seller will return to Buyer all CI disclosed by Buyer, along with all copies and portions thereof. Seller will not export or re-export, directly or indirectly, any of Buyer's CI or Products to any country for which any applicable government, at the time of export or re-export, requires an export license or other governmental approval, without first obtaining the license or approval. Seller's obligation to keep confidential and restrict the use of Buyer's CI will survive five (5) years from the termination of this Order.

5. **OWNERSHIP.** Seller shall provide all labor, materials, tools, equipment, personnel, supervision, and facilities necessary to provide the Products or Services. All tools, equipment, dies, gauges, models, drawings, or other materials paid for or furnished by Buyer to Seller ("Property") are, and will remain, the sole property of Buyer. Buyer will retain ownership of all specifications for the Products and Services ("Specifications") provided by Buyer to Seller, including all modifications or enhancements made by Seller to such Specifications. Additionally, Seller agrees that all materials in whatever form prepared or produced by Seller under this Order ("Work Product") shall be considered a "work made for hire" under the copyright laws of the United States and are assigned to and shall become the sole property of Buyer. At Buyer's request and expense, Seller shall execute all papers and provide reasonable assistance to Buyer necessary to vest ownership in Buyer of all such Work Product and modifications or enhancements to Specifications and to enable Buyer to obtain Intellectual Property Rights in any such Work Product, and modifications or enhancements to Specifications. "Intellectual Property Rights" shall mean any and all copyrights, trademarks, maskworks, patents, or rights relating to innovations, know-how, trade secrets and CI (technical, and non-technical) that exist as of the Acceptance Date or hereafter come into existence, and all renewals and extensions of the foregoing, regardless of whether or not such rights have been registered with the appropriate authorities in such jurisdiction. Seller's obligations in this Article 5 will survive the termination of this Order.

6. **PERFORMANCE.** Seller must perform its obligations under this Order in strict accordance with the terms and conditions of all applicable schedules or specifications, drawings, documentation. Seller will safeguard all Property: (i) while it is in Seller's custody and control; (ii) be liable for any loss or damage to the Property; (iii) keep the Property free from all liens or charges of any type; (iv) use the Property only for Buyer Products; and (v) return the Property to Buyer upon request. Seller agrees to waive and hereby does waive any lien it may have in regard to the Property. At Buyer's request, Seller will provide Buyer information about, and participate in regular meetings with Buyer to discuss, the status of outstanding deliverables, and any actual or potential issues that may arise related to Seller's performance under this Order. Seller may not sell, recycle or otherwise dispose of excess, obsolete, scrap, WIP, raw materials, or finished Products associated with this Order without Buyer's permission. Seller will maintain all records related to the Products and this Order, as required by this Order, law, rule, or regulation.

7. **WARRANTIES.** Seller expressly represents and warrants that the Products and Services shall: (i) for a period of 60 months from the date of receipt by Buyer, be merchantable, free from defects in design, material and workmanship, of the highest quality, and shall conform to the terms and conditions of all applicable schedules or specifications, drawings, documentation, Buyer test and quality standards, and industry standards; (ii) be fit and safe for the purpose intended by Buyer; (iii) be wholly new; (iv) Seller has good and warrantable title to the Products; (v) Seller has no knowledge that the Products or Services infringe, misappropriate, or otherwise make unauthorized use of any Intellectual Property Rights; (vi) be appropriately labeled and packaged; (vii) Seller has obtained all necessary approvals, consents and authorizations to enter into, perform and carry out its obligations under this Order. In addition to the foregoing warranties, Seller provides and Buyer is entitled to all warranties that arise by implication or operation of law, and Seller shall extend all warranties it receives from its vendors to Buyer. All warranties run to Buyer, and through Buyer, to its customers. All warranties survive any inspection, acceptance, payment, or resale by Buyer. Buyer, Buyer's customer, and any appropriate regulatory agency may, upon reasonable advanced notice, inspect Seller's facilities, equipment, materials, records, and the Products, and may audit for compliance. This requirement applies to any level of the Seller's supply chain involved in this Order. Upon the fulfillment, expiration or termination of this Order, at Buyer's request, Seller will transfer all records to Buyer, but retain a copy of any records required to be kept by law, subject at all times to applicable confidentiality obligations.

8. **REMEDIES.** In addition to remedies provided herein and available at law or in equity, if Seller defaults or breaches its obligations under any this Order, Seller shall and at its sole expense, and at Buyer's option: re-perform, repair, or replace the affected Products, or provide a refund for the affected Products; expedite late deliveries and performance; pay for all related costs, including, without limitation, inspection, sorting inventories to isolate affected Products, reworking, retesting, storage, shipping, repackaging, removal, re-installation, expediting, and replacing the Products; pay to Buyer all costs of investigating, recovering, recalling, repairing or replacing products that incorporate or are otherwise potentially impacted by the affected Products; pay all other costs, charges, fines, penalties, or damages incurred by Buyer or its customers related to the affected Products. In addition, Seller shall be liable for all direct, indirect, incidental and consequential harm to Buyer and its customers arising from any breach of this Order, including, without limitation, all costs, damages, losses and expenses incurred by Buyer or its customers ("Damages"). Damages include without limitation, the cost to procure replacement goods, all costs of repair, inspection, storage, shipping, reinstallation, expediting, product recalls, stop of line, plant closures, lost profits, damage to goodwill and reputation, customer concessions or penalties, and any injury to person or property. In addition, Buyer may cancel this and any Order without liability of any kind, including but not limited to liability for raw materials, WIP, or finished Products Seller may have for the Order. Seller further agrees that Buyer's rights and remedies, including, without limitation, the total amount of Damages Buyer may recover, the types of Damages Buyer may recover, and the time in which Buyer must assert a claim or file a lawsuit, shall not be reduced in any way.

9. **TERMINATION.** Buyer may terminate all or any part of this Order immediately at any time for its convenience, without liability to Seller, by delivering written notice to Seller. Failure to comply with any provision of this Order or to provide reasonable assurances of future performance if requested, appointment of a receiver, or an assignee for the benefit of creditors, insolvency or inability to pay debts as they become due, except as may be prohibited by applicable bankruptcy laws, shall entitle Buyer to terminate this Order without liability. In such event, Buyer shall be entitled to seek any or all remedies provided in this Order or at law or in equity. Upon Acceptance, Seller may not revoke its acceptance or otherwise refuse to fully perform its obligations under this Order. The representations, warranties, indemnities and other obligations that explicitly survive, or by their nature or context are intended to survive, termination of this Order shall survive.

10. **INDEMNIFICATION.** Seller hereby agrees to indemnify, hold harmless and fully defend Buyer and all of its affiliates, customers, officers, directors, employees, contractors, and agents ("Indemnified Parties") from and against any and all claims, damages, expenses, suits, losses, or liabilities of any type, under any theory of liability or recovery, ("Claims") arising from or related to any death, injury, or property damage caused by acts or omissions of the Seller, its officers, directors, employees, contractors, or agents ("Indemnifying Parties") arising from or connected with the performance of this Order, Seller's or Seller's contractors', representatives' or agents' acts or omissions under this Order, including without limitation the delivery of Products and Services that are defective, non-conforming, or that otherwise fail to comply with Seller's warranties as set forth in this Order, or any actual or claimed infringement or misappropriation of any Intellectual Property Rights. Seller will reimburse the Indemnified Parties for all losses, costs, and expenses incurred as a result of such Claims, including court costs and attorneys fees. In the case of a Claim of infringement of Intellectual Property Rights, if the use of any portion of the Products provided hereunder is enjoined as a result of any suit, then Seller, at no expense to Buyer and its customers, will either procure the right for Buyer and its customers to continue using the Products or replace or modify the Products so that they become non-infringing and are of equivalent or superior functionality as determined by Buyer in its sole discretion. If neither of the foregoing alternatives is available Buyer may return all or any part of the Products, at Buyer's sole option, for a full refund of the total amounts paid for the Products and assert all other remedies available to Buyer under this Order or under controlling law. Seller agrees that its obligations as set forth in this Article 10 will survive the termination of this Order. Seller will not enter into any settlement order that affects any Indemnified Parties without Buyer's prior written consent. Buyer shall not have an obligation to indemnify Seller under any circumstances.

11. **CHANGES.** Seller will not make changes to custom Products or to the manufacturing, testing, or quality processes, the bill of materials, materials, design, tools, sources of raw materials, or to locations used to manufacture, assemble, or package the custom Products without Buyer's prior written

approval.

12. **INSPECTION AND QUALITY.** Payment for the Products and Services shall not constitute acceptance. Products and Services shall only be deemed accepted when they have actually been found to be in conformance with this Order. Seller promptly will issue a return material authorization ("RMA") to Buyer for non-conforming Products. Title to Products designated for return by Buyer will immediately revert to Seller. Neither Seller's failure to issue an RMA nor Buyer's return of nonconforming Products will affect Buyer's other rights and remedies under this Order or applicable law, including, without limitation, the right to reject or revoke acceptance of non-conforming Products. Seller will pay all freight expenses for return of non-conforming Products. Any failure to fully comply with specifications, Buyer's test and quality standards or processes, meet applicable industry quality and performance standards, comply with applicable legal/regulatory requirements, and provide goods or services that are merchantable and fit for the purpose intended by Buyer shall constitute a material breach of Seller's obligations under this Order. Seller shall provide written notification to Buyer when a nonconformance is determined to exist, or is suspected to exist, on product already delivered to Buyer.

13. **DELIVERY AND SHIPMENT.** All Products shall be packed and shipped in accordance with this Order or provided by Buyer. **TIME IS OF THE ESSENCE ON THIS ORDER.** If Seller fails to timely perform or deliver, Seller shall reimburse Buyer, at Buyer's option, for a) all Damages incurred by Buyer as a result of late delivery or performance, or b) liquidated damages in the amount of 1% of the price of the delayed delivery or performance for each calendar day of delay, computed from the due date without grace period. In addition, Buyer shall be entitled to terminate, without liability, this Order as to Products not yet shipped or Services not yet rendered, by written notice effective upon receipt by Seller and purchase substitute Products or Services elsewhere and charge Seller any Damages incurred. If in order to comply with Buyer's required delivery date it becomes necessary to expedite this Order, Seller shall pay all costs of expediting. Seller is responsible for loss or damage caused by Seller and discovered after transfer of title. No charge will be allowed for packing, labeling, commissions, customs, duties, storage, crating, express handling or travel, unless specifically indicated.

14. **INSURANCE.** Seller shall (i) maintain statutory Worker's Compensation, Employer's Liability, Broad Form Commercial General Liability, and Business Automobile Liability Insurance on behalf of Seller and its subcontractors, and Contractual Liability Insurance for liability under this Order, in each instance of at least \$1,000,000 (U.S.) combined single limit; (ii) name Buyer as an additional insured and; (iii) provide a waiver of subrogation in favor of Buyer; (iv) cause its insurance to be designated as primary and provide for thirty (30) days' minimum prior notice of amendment or cancellation to Buyer; and (v) require its supply chain to maintain, at a minimum, the same coverage and limits required of Seller. Seller shall provide evidence that it has procured the required insurance if Buyer asks for such evidence. Buyer's failure to ask for such evidence or Seller's failure to provide it shall in no way limit or waive Seller's obligations to procure insurance. Nothing contained in these insurance requirements will be deemed to limit or expand the scope, application and/or limits of the coverage afforded, which coverage will apply to each insured to the full extent provided by the terms and conditions of the policies. Nothing contained within this provision will affect and/or alter the application of any other provision contained with this Order. Buyer shall have no obligation to procure or otherwise maintain any insurance covering Seller or the Products.

15. **COMPLIANCE.** Seller, on behalf of itself and its supply chain, warrants that all Products and Services supplied pursuant to this Order will have been supplied in compliance with all applicable federal, state and local laws, orders, rules and regulations, and all applicable jurisdictions' rules and regulation concerning freedom of association, wages and working hours, safety and health, anti-discrimination and humane treatment of workers. Seller shall have an affirmative duty to immediately correct any non-compliance and fully defend and indemnify Buyer against any liability for Damages caused by any non-compliance with this provision. Seller must comply with all import and customs laws, regulations and administrative determinations of the importing country. Seller must comply with the security criteria of any supply chain security government program of the importing country. If Seller is the exporter of record, Seller must obtain all export authorizations from the United States government or other governments that may be required to lawfully make such shipments. Seller agrees that it and each subcontractor shall to the extent applicable by law comply with (1) the terms of the Equal Opportunity and Affirmative Action clauses, which are incorporated herein by this reference, and program requirements contained in 41 CFR §§ 60-1.4(a), 250.5(a) and 741.5(a), or their successors, concerning women, minorities, eligible veterans and individuals with a disability, (2) the Notice of Requirement for Affirmative Action to Ensure Equal Employment Opportunity (41 CFR § 60-4.2(d)), or its successor, (3) the EEO-1 and VETS-100 form filing requirements contained in 41 CFR §§ 60-1.7 and 61-250.5(a), or their successors, and (4) all applicable Executive Orders, laws and regulations relating to any of the above. Seller agrees to hold harmless and indemnify Buyer, its directors, officers and employees against all losses, claims, penalties, judgments, liabilities and expenses which any of them may pay or incur arising out of this Order, including but not limited to all representations made by the Seller with respect to documentation or other Customs or Governmental requirements with regard to entry requirements, classification, valuation, preferential treatment, duty drawback or trade terms. Seller agrees that upon request, and within a reasonable period of time, the Seller will provide information regarding its products, this information is inclusive, but not limited to, a list of components and processes (including sub-tier suppliers), description of the product manufacturing process, country of origin (including sub-tier suppliers), harmonized tariff schedule code (HTS Code), ECCN/USML and restricted and reportable materials disclosure (RoHS, REACH, WEEE, Conflict Minerals, California Proposition 65, MSDS, etc.).

16. **LAW AND VENUE.** The parties agree and acknowledge that, regardless of the location from which this Order is issued, events related to this transaction may occur in various locations around the world, including, without limitation, the State of Wisconsin, United States of America ("USA"). The parties further agree and acknowledge that the transaction contemplated by this Order may involve and inure to the benefit of entities in addition to the entity issuing this Order, including, without limitation, Buyer and its subsidiaries, divisions, and related entities, or their respective customers or subcontractors. The parties therefore agree that this transaction has a significant relationship to Wisconsin and that this Order, all transactions and conduct related to this Order, and all disputes and causes of action between the parties related thereto (in contract, warranty, tort, strict liability, by statute, regulation or otherwise) shall be governed exclusively by and construed in accordance with the laws of the State of Wisconsin, USA, without regard to its conflicts of laws provisions. The parties specifically disclaim application of the United Nations Convention on Contracts for the International Sale of Goods. If one or more provisions of this Order is held to be unenforceable under applicable law, the unenforceable portion will not affect any other provision and will be construed as if the unenforceable provision was not present. Seller must initiate any legal action or claim against Buyer within one (1) year of the date of the alleged breach or be forever barred from pursuing such action or claim. Except as set forth herein, Buyer's right to pursue its claims in court and to proceed before a jury shall not be limited, and the time in which to file such lawsuits shall not be reduced. Seller shall continue to perform its obligations during the pendency of any dispute.

17. **MISCELLANEOUS.** Seller will not issue a press release or make any disclosures regarding this Order, or about Buyer's business generally, without prior written consent. Seller may not assign or subcontract this Order or any of its rights or obligations hereunder, without the prior written approval of Buyer. Any attempted assignment without the necessary approval will be void. Buyer may assign its rights or obligations under this Order, in whole or in part, without the need for Seller's approval, in whole or in part. Seller retains responsibility for all Services subcontracted hereunder and will indemnify Buyer against any liability for Damages caused by the acts or omissions of Seller's subcontractors. **UNDER NO CIRCUMSTANCES SHALL BUYER BE LIABLE FOR INDIRECT OR CONSEQUENTIAL DAMAGES, INCLUDING, WITHOUT LIMITATION, LOST PROFITS. BUYER'S TOTAL LIABILITY FOR DAMAGES UNDER THIS ORDER SHALL NOT EXCEED THE PRICE ALLOCABLE TO THE SPECIFIC PRODUCTS OR SERVICES GIVING RISE TO THE CLAIM.** Any notice, approval or consent required or permitted hereunder shall be in writing and will be deemed to have been duly given if mailed by registered or certified mail, postage prepaid, or delivered by overnight courier service with tracking capabilities to the respective addresses of the parties set forth in this Order (or such other addresses) a party may designate by ten (10) days prior written notice. This Order and any documents attached to or referred to on this Order constitute the entire agreement between the parties and can only be modified in a writing signed by authorized representatives of both parties. Seller is an independent contractor in the performance of its obligations under this Order, and Buyer is to have no control over the methods and means Seller uses to fulfill its obligations under this Order. Neither Seller nor its employees shall be considered employees of Buyer. Seller agrees that Buyer has the right to set off any amount owed by Seller to Buyer. Brady suppliers are required to comply with the terms and conditions that are laid out in the Brady Supplier Manual. The additional requirements for Brady suppliers can be found in the Brady Supplier Quality Manual located at <http://www.bradyid.com/corporate/sustainability-and-supplier-information>. Buyer must ensure that its supply chain and its sub-tier supply chain are provided with a copy of Brady's terms and conditions and will comply with these terms and conditions in performance of contracts for Brady.

Revision 2.0:10/17/2019